

Court No. - 21

Case :- WRIT - C No. - 29504 of 2014

Petitioner :- M/S K.K. Duplex & Paper Mills Pvt. Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. & 2 Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Nripendra Mishra,A.N. Singh

Hon'ble Krishna Murari,J.

Hon'ble Mrs. Vijay Lakshmi,J.

A preliminary objection has been raised by Shri Nripendra Mishra that since the vires of Clauses 4.6 (h) (i) and 4.21 (a) of the U.P. Electricity Supply Code, 2005 as well as Chapter 4 of the Cost Data Book published by U.P. Electricity Regulatory Commission for recovery of System Loading Charges, is challenged, as such, this petition, according to the roster, is not cognizable before this Bench.

Office is directed to examine the matter and submit a report in this regard by tomorrow.

Put up as fresh along with the report on 28.05.2014.

Order Date :- 27.5.2014

VKS

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Hon'ble Krishna Murari,J.

Hon'ble Mrs. Vijay Lakshmi,J.

Prima facie, we do not agree with the report of stamp reporter, which is submitted in pursuance to the order dated 27.05.2014.

However, due to paucity of time, the matter could not be heard today.

On the joint request made by the learned counsel for the parties, put up as fresh on 7th July, 2014.

Order Date :- 28.5.2014

VKS

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Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Mrs. Sunita Agarwal, J.

After the matter was heard at length, it was pointed out that plea with regard to vires raised in the present writ petition is incomplete. Learned counsel for the petitioner prays that he may be permitted to withdraw this writ petition and file a better writ petition.

The writ petition is dismissed as withdrawn with the said liberty.

Order Date :- 7.7.2014

Atul kr. sri.